

Group Exercise #2 – Practice Disclosing the Medical Error to the Patient or Family

Issues to Address When Disclosing a Medical Error

1. Record of conversation with patient / family must be made in the chart.
2. State the facts, clearly.
3. Express that you regret the mistake, and apologize.
4. Take full responsibility for the error.
5. Explain the nature of the error, including time, place, and circumstances.
6. Explain the proximal cause.
7. Explain the known consequences for the patient, and the potential or anticipated consequences.
8. Explain any actions taken to treat the medical error.
9. Identify those who will manage the ongoing care of the patient.
10. Discuss any planned investigation or review of the error.
11. Explain who else has been, or will be, informed of the error.
12. Identify actions taken to identify system issues that may have contributed to the error.
13. Discuss who will manage ongoing communication with the patient and his or her family.
14. Provide the names and phone numbers of individuals with whom patients and families can address concerns and questions.
15. Explain how to obtain support and counseling regarding the error.
16. Explain that any charges directly related to the error will be removed from the patient's account.
17. Offer a commitment to assist the patient and his or her family in identifying resources to help obtain compensation if actual damages are warranted.
18. Ask if the patient or family have any questions, and address these as well as possible.